

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

LEROY COLLINS,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NYPD OFFICER WILSON VERDESOTO,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 20, 2018

SIVIN & MILLER, LLP

By  _____

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

The City of New York, c/o Corporation Counsel, 100 Church Street, New York, NY 10007

NYPD Officer Wilson Verdesoto: c/o NYPD 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
LEROY COLLINS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER WILSON VERDESOTO,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, defendant NYPD Officer Wilson Verdesoto (hereinafter “Verdesoto”) was and is a police officer employed by the NYPD.

5. That at all times herein mentioned, Verdesoto was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Verdesoto was acting under color of state law.

THE FACTS

7. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

8. That on January 25, 2018, in the County of Kings, City and State of New York, NYPD officers, including but not limited to Verdesoto, without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime, and without a warrant, forcibly tackled plaintiff to the ground and used other physical force against plaintiff, seized plaintiff, and then without consent or justification searched plaintiff and plaintiff's belongings.

9. That Verdesoto and the other officers (hereinafter referred to collectively as "the officers") also forcibly handcuffed plaintiff and otherwise used force against plaintiff that was unreasonable and unnecessary under the circumstances.

10. That thereafter Verdesoto and the officers arrested plaintiff without a warrant and without probable cause, and imprisoned and/or caused plaintiff to be imprisoned at various locations, including a police precinct and Central Booking.

11. That on or about January 26, 2018, Verdesoto and the officers initiated and/or caused to be initiated against plaintiff a criminal prosecution, charging plaintiff with various counts of criminal possession of a weapon.

12. That Verdesoto and the officers knew and/or had reason to know that the weapon that plaintiff was alleged to have possessed was obtained by the officers illegally.

13. That Verdesoto and the officers intentionally withheld from the Office of the District Attorney information regarding the circumstances of the recovery of the weapon, withheld from the District Attorney the fact that the weapon was obtained by the officers illegally, and falsely represented to the District Attorney that the weapon had been obtained by the officers legally.

14. That the aforementioned withholding of information and conveying of false information by Verdesoto and the officers constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

15. That Verdesoto and the officers knew and/or had reason to know that there was a lack of probable cause to believe that the prosecution against plaintiff would succeed, since the prosecution was based on evidence that was obtained by the officers illegally.

16. That as a result of the aforesaid actions of Verdesoto and the officers, plaintiff was incarcerated for several days, was required to make court appearances, and otherwise suffered a deprivation of his liberty.

17. That on or about March 6, 2018, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

18. That defendants' actions were intentional, malicious, and without excuse of justification.

19. That as a result of the actions of defendants, plaintiff sustained severe emotional distress, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

FIRST CAUSE OF ACTION AGAINST VERDESOTO
(Illegal Search and Seizure: 42 USC § 1983)

20. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

21. That the aforesaid actions of Verdesoto in tackling, seizing, and searching plaintiff constituted an illegal search and seizure of plaintiff, in violation of plaintiff's rights under the Fourth Amendment to the Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

22. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

23. That the aforementioned actions of Verdesoto and the officers in tackling plaintiff and otherwise using excessive force against plaintiff constitute an assault and battery, for which Verdesoto and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

24. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

25. That the aforementioned actions of Verdesoto and the officers constitute a false arrest and false imprisonment of plaintiff, for which Verdesoto and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

27. That the aforementioned actions of Verdesoto and the officers constitute a malicious prosecution of plaintiff, for which Verdesoto and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION AGAINST VERDESOTO
(42 USC § 1983: Fourth and Fourteenth Amendment Violations)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforementioned assault and battery, false arrest and false imprisonment, and malicious prosecution of plaintiff by Verdesoto constitute illegal seizures of plaintiff and deprivation of liberty of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

SIXTH CAUSE OF ACTION AGAINST VERDESOTO
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforesaid actions by Verdesoto constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42

U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

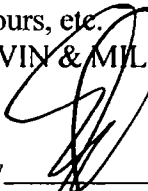
32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of Verdesoto and the other officers.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendant Verdesoto, and attorney's fees against Verdesoto pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
June 20, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

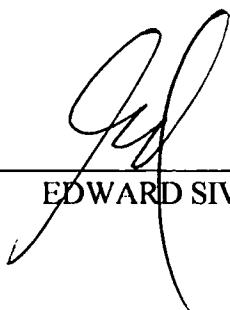
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
June 20, 2018



EDWARD SIVIN

Index No.

Year 2018

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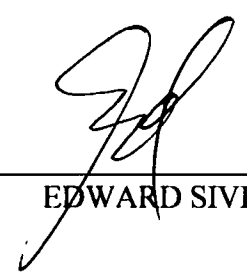
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
June 20, 2018